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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

I,

**DECLARATION OF FRANCISCUS
DYLAN ROSARIO
IN SUPPORT OF MOTION FOR LEAVE
TO FILE
THIRD AMENDED COMPLAINT**

FRANCISCUS DYLAN ROSARIO, declare as follows:

1. PERSONAL KNOWLEDGE

1. I am the Plaintiff in this action. I have personal knowledge of the facts stated herein, except as to matters stated on information and belief, and as to those matters, I believe them to be true. If called as a witness, I could and would competently testify to the following.
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2. PROCEDURAL BACKGROUND

2. On **December 23, 2025**, I filed the original Complaint in this action, asserting claims for fraud and unfair business practices arising from CSAA Insurance Exchange's handling of my claim.
3. On **February 25, 2026**, I filed the First Amended Complaint to address procedural issues.

1 4. On **April 22, 2026**, Defendant filed a Motion to Strike under Code of Civil Procedure § 436,
2 raising seven objections to the operative complaint.
3

4 **3. UNDERLYING FACTS — THE COLLISION AND THE DENIAL**

5 5. On **February 4, 2021**, I was involved in a motor vehicle collision in San Francisco with
6 CSAA's insured, Subhi Abdelhalim.

7 6. On **February 25, 2021** — just 21 days after the collision — CSAA sent me a denial letter for
8 **Claim No. 1004-09-1054**. The letter was signed by **Sarah Rash, Claims Representative**.

9 7. The denial letter stated, in pertinent part:

10 “We have concluded our investigation of your claim. Based on our investigation, and
11 after carefully reviewing the facts and circumstances of your claim, we have concluded
12 that our insured is not liable. . .”

13 8. At the time I received this denial, I was an unrepresented direct third-party claimant with
14 no independent means to verify the scope of CSAA's investigation. I accepted the denial as
15 the product of a legitimate investigative process because the letter expressly represented that
16 CSAA had “concluded” its investigation and “carefully reviewed” the facts.
17

18 **4. THE FOUR SILENT WITNESSES CSAA FAILED TO OBTAIN**

19 9. As I later learned through the underlying litigation in CGC-21-594102 (and as further con-
20 firmed by the SFPD Incident Report itself), at the time of the February 25, 2021 denial, CSAA
21 had not retrieved or reviewed any of the four foundational first-responder records (the “**Silent**
22 **Witnesses**”), each of which was reasonably available to CSAA on or before February 25,
23 2021 through routine claim-handling retrieval channels:

24 (a) The **911 audio recording** and the corresponding **San Francisco Department of Emer-**
25 **gency Management (SFDEM) Computer-Aided Dispatch (CAD) event record** gen-
26 erated on February 4, 2021 in connection with **SFPD Incident Report No. 210079556**
27 — which contains both my own contemporaneous report that the driver struck me and
28 the insured's own statements acknowledging contact;

1 (b) **Body-worn camera (BWC) footage** from the responding San Francisco Police Depart-
2 ment officers — which contains a third-party eyewitness, **Justin Rosemond**, on-camera
3 independently corroborating that the driver struck me;

4 (c) **The SFPD Computer-Aided Dispatch (CAD) log** documenting the emergency response
5 on February 4, 2021; and

6 (d) **Any supplemental SFPD report** relating to the February 4, 2021 collision.

7 Each of (a)–(d) was identifiable on the face of SFPD Incident Report No. 210079556 and was
8 retrievable through routine subpoena duces tecum (Code Civ. Proc. § 1985 / Evid. Code §
9 1560), Public Records Act request (Gov. Code § 7922.530), Penal Code § 832.7(b) request,
10 or insured-authorization channel.

11 10. Taken together, these four sources constituted virtually uncontested evidence of liability: con-
12 fession, victim report, eyewitness corroboration, and contemporaneous official record. CSAA
13 denied my claim without obtaining any of them.

15 **5. THE THREE-ANCHOR DELAYED-DISCOVERY SEQUENCE**

16 11. I did not discover the facts constituting the fraud, reckless misrepresentation, or negligent
17 misrepresentation until the following sequence of events:

18 (a) **January 17, 2025:** Defense counsel in the underlying action filed Motions in Limine Nos. 6
19 and 17, asserting that the 911 / BWC / CAD materials had “not been produced in discovery”
20 and were of “unknown provenance.” This revealed that CSAA had never obtained them
21 during its 2021 “investigation.”

22 (b) **February 18, 2025:** At a pretrial hearing, Jeremy Jessup (Dolan Law Firm) testified that
23 these materials had been produced to defense counsel in August–September 2022. Defense
24 counsel simultaneously stated the 911 call was “news to me” (RT 141:4–11). This direct
25 contradiction established that the materials existed and had been in defense possession, but
26 the non-investigation had been concealed.

27 (c) **April 16, 2025:** Defense counsel admitted on the trial record: “They were provided by Dolan.
28 He has had them for whatever, sure.” (RT Vol. 7, p. 213, lines 13–15.)

1 12. These three events, taken together, constitute the first point at which I could reasonably have
2 determined that CSAA's 2021 representation of investigative completeness was false.

3 **12A. Reckless-disregard sub-paragraph.** After the April 16, 2025 admission, on the basis of
4 my own personal observation of the on-record events and the certified record in CGC-21-594102,
5 I came to understand that CSAA's February 25, 2021 written representation that its investigation
6 of my claim was "concluded" was either knowingly false or, in the alternative, made with reckless
7 indifference to whether it was true. I make this statement of my present belief on personal knowl-
8 edge derived from my direct observation of the January 17, February 18, and April 16, 2025 record
9 events, the contents of the SFPD Incident Report, and the absence of any retrieval of the four Silent
10 Witnesses from CSAA's 2021 claim file. I do not state any conclusion of law; I describe the basis
11 for my own present belief about the events and representations I personally observed.

13 **6. RELIANCE AND DIRECT-ADDRESSEE POSTURE**

14 13. At all times relevant to the February 25, 2021 denial, I was an unrepresented direct third-
15 party claimant of CSAA Insurance Exchange. CSAA sent the February 25, 2021 denial letter
16 directly to me. No counsel had been retained on my behalf at the time of the denial, and
17 CSAA did not communicate the denial through counsel. I was the sole intended addressee of
18 the representation.

19 14. I had no independent means to audit CSAA's internal claim file or to verify what records
20 CSAA had retrieved or reviewed before issuing the February 25, 2021 denial. I am not an in-
21 surance professional, and I had no access to CSAA's claim-handling systems, claim notes, or
22 investigation records. Because the February 25, 2021 letter expressly represented that CSAA
23 had "concluded" its investigation and had "carefully reviewed the facts and circumstances
24 of [my] claim," I treated those representations as factual representations about the state of
25 CSAA's own claim file — that is, about what investigative steps CSAA had performed, what
26 records CSAA had obtained, and what evidence CSAA had reviewed and weighed before
27 issuing the denial.

28 15. I relied on those representations in deciding how to respond to the denial. Among other

1 things, I relied on the representation in deciding whether to retain counsel, when to file the
2 underlying personal-injury action (CGC-21-594102), and how to direct the litigation strategy
3 in that action. The reliance described in this paragraph is the reliance pleaded at TAC ¶ 76
4 (Element 5 of the Negligent Misrepresentation Cause of Action) and at TAC ¶¶ 56, 61, and 6
5 (the direct-addressee theory).

7. RESPONSE TO MOTION TO STRIKE

8 16. After reviewing Defendant’s Motion to Strike, I determined that certain amendments to the
9 operative complaint would address the objections raised while preserving the substance of my
10 claims and codifying the doctrinal architecture (reckless-disregard scienter floor, Negligent
11 Misrepresentation under Civil Code § 1710(2), and Declaratory Relief under Code of Civil
12 Procedure § 1060) on the same factual record.

13 17. I have prepared the proposed Third Amended Complaint (“TAC”) attached hereto as Exhibit
14 A.

15 **17A.** The operative Third Amended Complaint body in Plaintiff’s filing system contains **682**
16 lines (including headings) before compilation into Exhibit A concurrently filed with this Motion.

17 18. The TAC addresses each of Defendant’s seven objections, and additionally codifies the reckless-
18 disregard scienter floor at TAC § 0, the Negligent Misrepresentation count at the Fourth Cause
19 of Action, and the Declaratory Relief count at the Fifth Cause of Action, as set forth in the
20 Memorandum of Points and Authorities and the Third Amended Complaint (including the
21 section headings and paragraph cross-references identified in the memorandum).

8. GOOD FAITH; NO PREJUDICE; CONCLUSION

23 19. I am filing this motion in good faith. I genuinely believe that the claims asserted in the TAC —
24 including the codified reckless-disregard tier under *Engalla*, the Negligent Misrepresentation
25 tier under Civil Code § 1710(2) and *Bily*, and the Declaratory Relief count under Code of
26 Civil Procedure § 1060 — are meritorious and supported by the certified record. I am not
27 filing this motion for purposes of delay or harassment. I seek leave to amend so that my
28

claims may be adjudicated on their merits.

20. To the best of my knowledge, granting leave to amend will not prejudice Defendant:

(a) The TAC does not add any new parties.

(b) The TAC does not assert any new factual theory of liability and rides on the same factual record as the operative Second Amended Complaint.

(c) No additional discovery should be necessary; the TAC adds only legal architecture (codified scienter floor; codified statutory counts; codified doctrinal stack; codified regulatory spine; and the Position A vs. Position B cross-case spine to companion CGC-25-631801).

(d) The case is at an early stage.

21. I respectfully request that this Court grant leave to file the Third Amended Complaint so that my claims may be adjudicated on their merits.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on **April 28, 2026**, at **Rohnert Park**, California.

FRANCISCUS DYLAN ROSARIO

Enio